

CERTIFIED TRANSCRIPT OF:

Shyheen Buksh vs. Sixt Rent A Car

CHARLENE WILSON DOMINGUES

September 18, 2025

Reported by: Adrienne Meda



**West Coast Reporters LLC
68 Mitchell Blvd., Suite 210, San Rafael, CA 94903**

Main Office: 415-472-2361

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO

SHYHEEN BUKSH,

CASE NO: CGC-24-614323

Plaintiff,

VS

SIXT RENT A CAR, LLC;
MARCUS LAI and DOES
1 through 10, inclusive,

Defendants.

)

Zoom Recorded Deposition of

CHARLENE WILSON DOMINGUEZ

VOLUME 1

Pages 1 to 258

September 18, 2025

NOTICING ATTORNEY: KIRA BREKKE

REPORTED BY: ADRIENNE MEDA, CSR NO. 6609

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E X H I B I T S

Plaintiff's Exhibits:

EXHIBIT 83	Second Amended Notice of the Videotaped Deposition of Ms. Wilson Dominguez and Request For Production of Documents	17
EXHIBIT 99	Training records Bates number 651 to 652	115
EXHIBIT 50	28-page Sixt employee handbook effective March of 2012 Bates number SIXT29 to SIXT56	127
EXHIBIT 51	Document Bates stamped 258 to 260	140
EXHIBIT 52	Document entitled Discrimination, Harassment and Sexual Misconduct Policy and Acknowledgment Form Bates stamped Sixt 281 through 282	144
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1 Pursuant to Notice of Deposition and on
2 Thursday, September 18, 2025, commencing at the hour
3 of 8:10 a.m., at the Law Offices of West Coast
4 Reporters, LLC, 68 Mitchell Boulevard, Suite 201, San
5 Rafael California 95403, before me, ADRIENNE MEDA, a
6 Certified Shorthand Reporter Deposition Officer of
7 the State of California, there appeared via Zoom
8 platform,

9 CHARLENE WILSON DOMINGUEZ, VOLUME 1,
10 called as a witness by the Plaintiff, who, having
11 been remotely duly sworn by me, was examined and
12 testified as hereinafter set forth.

13 -000-

14 A P P E A R A N C E S

15 For the Plaintiff:

16 CALIFORNIA CIVIL RIGHTS
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19 For the Defendant:

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23 Also present:

24 Julianne Stanford, Cameron Hartquist, Madeline
25 Ley

1 THE REPORTER: Before we swear in the
2 witness, I need to put on the record that my name is
3 Adrienne Meda --

4 MS. BREKKE: Oh, let me -- let me start
5 recording. One second.

6 Okay, we are now recording. Go ahead.

7 THE REPORTER: I'm a Certified Shorthand
8 Reporter in the state of California, and my license
9 number is 6609.

10 MS. BREKKE: I'm wondering if we're
11 having some audio --

12 Ms. Wilson, do you mind kind of telling
13 me how you are this morning just so we can test your
14 audio?

15 THE WITNESS: I'm doing good.

16 MS. BREKKE: Okay.

17 Is that okay, Madam Court Reporter?

18 THE REPORTER: Yes. I can hear her well.

19 MS. BREKKE: So this marks the beginning
20 of media one. Today is Tuesday, September 18th.
21 This is the deposition of Charlene Wilson, also known
22 as Charlene Dominguez, testifying in her individual
23 capacity in Buksh verse Sixt, et al, in San Francisco
24 County, case number CGC-24-614323.

25 My name is Kira Brekke, and I'm

1 videotaping this deposition on behalf of the
2 plaintiff --

3 THE REPORTER: Can we go off the record
4 for one moment?

5 MR. BREKKE: Sure.

6 (Off the record.)

7 MS. BREKKE: Okay. And this deposition
8 is taking place via Zoom, pursuant to agreement of
9 all parties. The time is now 8:12 a.m. I'd like all
10 parties in the room to please state your appearances,
11 and I'll go first.

12 My name is Kira Brekke, as I stated. I
13 represent the Plaintiff, Shyheen Buksh, in this
14 matter.

15 MR. RAHMAN: I'm Imran Rahman for
16 Defendants.

17 MS. BREKKE: And I'll just note that we
18 may have a couple people from my firm coming in a
19 little bit later. Our law clerk, Madeline Ley,
20 paralegal Cameron Harquist. It's possible our
21 managing partner, Julian Stanford, will be coming in.

22 And Madam Court Reporter, I'm happy to
23 spell those out if you need.

24 Julian Stanford, J-U-L-I-A-N-N-E,
25 Stanford, S-T-A-N-F-O-R-D, Cameron, one of our

1 paralegals, normal spelling, C-A-M-E-R-O-N, last name
2 Hartquist, H-A-R-T-as-in-Tom-Q-U-I-S-T, and Madeline
3 Ley, L-E-Y.

4 Okay?

5 THE REPORTER: Thank you.

6 MS. BREKKE: You're welcome.

7 And I -- when they come into the room, I
8 will state their appearances, as well, for clarity.

9 EXAMINATION

10 BY MS. BREKKE: Hi, Ms. Wilson. How are
11 you?

12 A. I'm good. How are you?

13 Q. I'm fine, thank you.

14 So as I -- as I mentioned, I'm an attorney
15 representing the plaintiff in this case, Shyheen
16 Buksh.

17 Will you please state and spell your full
18 name for the record. And for the record, I'll add
19 that -- well, you can state your name. Go ahead.

20 A. My name is Charlene Dominguez. That's
21 C-H-A-R-L-E-N-E, and D-O-M-I-N-G-U-E-Z. Previously,
22 I was known as Charlene Wilson. It's W-I-L-S-O-N.

23 Q. You know what? We're going to do
24 Dominguez today. I think that's who you are today,
25 so let's do that. Okay. I might mess up, but

1 forgive me if I do.

2 So Miss Dominguez, how old are you?

3 A. I'm 33.

4 Q. Have you ever had your deposition taken
5 before?

6 A. No.

7 Q. So I'm going to take a few minutes to
8 explain what the ground rules today are.

9 So, naturally, I'm going to be asking you
10 questions. You have to answer those questions as
11 best as you can. I know we're on Zoom, and it seems
12 informal, but this is actually a formal court
13 proceeding. You've taken an oath, so you must make
14 every effort to answer these questions as accurately
15 as you can.

16 Do you understand that?

17 A. Yes.

18 Q. So as I'm asking you questions, if you do
19 not know the answer, I do not want you to speculate
20 or guess. However, I'm entitled to your best
21 estimate, and I am entitled to your best testimony.
22 But I don't want you to guess. So I'll give you an
23 example.

24 If I said, Ms. Dominguez, how much money
25 do I have in my wallet, how would you know. If, you

1 know, you and I were in the same room, I opened my
2 wallet, we're standing next to each other, you might
3 be able to look, you might have an idea.

4 Does that make sense? There's some sort
5 of reference point. Okay?

6 The court reporter here, she will be
7 writing down your answers and my questions. We've
8 done a really good job of this in prior depositions,
9 but she can't record -- she can't type two people
10 talking at once. So let's just make a really
11 concerted effort to not talk over each other. Please
12 make sure I finish my question before you start to
13 answer, and I'll be sure to let you finish your
14 answer before I start my next question. Okay?

15 You must also give verbal responses like
16 "yes" or "no," instead of nonverbal responses, like
17 "uh-huh" or "um-hum" or some sort of shaking of your
18 head. She can't record that down, and people slip up
19 here, and me or Imran will be sure to say, you know,
20 is that a verbal "yes" or a verbal "no."

21 At the end of today, you will have an
22 opportunity to look at the transcript that the court
23 reporter so diligently does for us, and you will have
24 an opportunity to make changes to it, if you
25 misspoke, if you need to change any of your

1 testimony. However, I'll warn you, at trial, I will
2 be able to use any changes you make to call out your
3 credibility or to show your testimony has little
4 weight. So, again, you want to make sure to make
5 every effort to be as accurate as possible today.
6 Understood?

7 Was that a "yes"?

8 THE REPORTER: I think she's -- I can't
9 hear her.

10 MS. BREKKE: Yeah. Your audio's a little
11 off.

12 THE WITNESS: Is that because I have the
13 fan on? Is that better?

14 MS. BREKKE: Yeah, that is better.

15 THE WITNESS: I understand.

16 MS. BREKKE: Okay. I will try to make my
17 questions as clear as possible. You do not know --
18 excuse me -- if you do not understand or you do not
19 hear my question, please let me know. I will
20 rephrase it, I will clarify, I will repeat the
21 question.

22 If you answer the question, I'm going to
23 assume you understood it.

24 Q. Okay? Does that make sense?

25 A. (Nods head.)

1 Q. Again, I'm not -- do you have ear phones
2 or something that you can put in? That's sometimes
3 better about picking up sound.

4 THE REPORTER: She's also on mute right
5 now.

6 MS. BREKKE: You're muted.

7 THE WITNESS: I was trying connect to
8 them.

9 MS. BREKKE: That's okay. It seems like
10 it's okay now.

11 Okay. So I'll just repeat that for the
12 sake of testing audio.

13 If you answer the question, I will assume
14 that you understood my question correctly and
15 completely.

16 Q. Okay? Does that make sense?

17 A. Yes.

18 Q. Okay. That's better.

19 If at any time you're tired or you need to
20 take a break, please let me know and I'll be happy to
21 accommodate you. We -- typically we take a break
22 once an hour. If you want to go for an hour and a
23 half, I'll make sure that everyone's comfortable
24 doing so. I take -- we're starting earlier, but
25 we'll take appropriate lunch breaks, coffee breaks,

1 usually 5 to 10 minutes for those shorter breaks, and
2 we'll talk about a lunch break. Okay?

3 A. Yes.

4 Q. Let's see. What else did I want to tell
5 you.

6 If I'm in the middle of asking questions
7 and you would like a break, I would just ask that you
8 let me finish my line of questioning. Okay?

9 A. Yes.

10 Q. Okay. Before we proceed, do you have any
11 questions?

12 A. No.

13 Q. Okay. Are you currently taking any
14 medication that might affect your memory or otherwise
15 affect your testimony today?

16 A. No.

17 Q. Okay. Is there any reason you cannot
18 give your best testimony today?

19 A. No.

20 Q. Do you feel sick or anything?

21 A. No.

22 Q. Okay. Do you know your presence today is
23 required?

24 THE REPORTER: I'm sorry?

25 BY MS. BREKKE: Q. Do you know your

1 presence here is required?

2 A. Required?

3 MR. RAHMAN: Object. May call for a
4 legal conclusion.

5 But go ahead.

6 THE WITNESS: Can you re --

7 MS. BREKKE: Yeah.

8 Q. Do you understand that your presence
9 today is required?

10 A. No, I did not know that it was required
11 but --

12 Q. Okay.

13 A. -- I don't mind being here.

14 Q. Okay. Do you know that Sixt cannot
15 retaliate against you for your testimony today?

16 A. Yes.

17 MR. RAHMAN: Same objection.

18 BY MS. BREKKE: Q. And do you agree to
19 have your counsel accept service of a trial subpoena
20 on your behalf?

21 A. I don't understand that question.

22 Q. That's okay. Yeah. So when this case
23 goes to trial, your presence will be required, and
24 there are a couple of ways that we can issue a
25 subpoena to you to appear at trial.

1 The first way is we can have someone go to
2 your house, deliver it to you in that manner, or your
3 counsel can accept it on your behalf.

4 A. Okay, yes.

5 Q. You agree to have your counsel accept
6 it --

7 A. Yes.

8 Q. -- service of a trial subpoena?

9 A. Yes.

10 Q. Okay, thank you.

11 And, Ms. Dominguez, do you have a middle
12 name?

13 A. Yes. It's Wilson.

14 Q. Got it. Okay. So when you got married,
15 you made -- I don't like the word "maiden name," but
16 major --

17 A. Last name Wilson, yes -- I mean, last
18 name is my middle name.

19 Q. Okay. So your full name is Charlene
20 Wilson Dominguez; is that correct?

21 A. Yes.

22 Q. Okay. Ms. Dominguez, did you meet with
23 anyone to prepare for this deposition today?

24 A. My attorney.

25 Q. Okay. And is your attorney -- is Imran

1 who you met with?

2 A. Yes.

3 Q. And how many times did you meet with him?

4 A. Maybe four?

5 Q. Okay. And that first time you met with
6 him, when was it?

7 A. I can't recall the day, the first time.

8 Q. That's okay. Was it within the last
9 month?

10 A. The first time? No.

11 Q. It was --

12 A. Last year?

13 Q. And how long was that meeting?

14 A. At least an hour.

15 Q. Okay. Was it more than two hours?

16 A. I'm going to say no, because the meeting
17 was scheduled for two hours. I don't think we went
18 over.

19 Q. Okay. And then what about the second
20 time, when was that?

21 A. Sometime within that year. I think they
22 were more recent, so within the last six months.

23 Q. And how long was that meeting?

24 A. One to two hours.

25 Q. And the third time -- and I know you said

1 about four times, so I'm just going to go off that
2 approximation.

3 So the third time you met, how long did
4 you meet for?

5 A. It was more recent. So maybe in the past
6 two months for one to two hours.

7 Q. And the most recent time?

8 A. Last week.

9 Q. Same question, how long did you meet for?

10 A. One to two hours. Not last week. It was
11 Monday, I think. Monday.

12 Q. Monday this week?

13 A. Yeah.

14 Q. That's okay.

15 And, Ms. Dominguez, did you review any
16 documents notes or memos in preparation for today's
17 deposition outside the presence of your attorney?

18 A. No.

19 Q. So every document you reviewed, it was in
20 the presence of your attorney?

21 MR. RAHMAN: I'm going to instruct you
22 not to answer that question based upon
23 attorney-client confidentiality and the work-product
24 doctrine.

25 MS. BREKKE: That's not valid. I asked

1 if you reviewed documents with -- fine, moving on.

2 Q. Did you look for any documents before
3 today's deposition?

4 A. Yes.

5 Q. And what documents did you look for?

6 A. I was asked to look for messages -- text
7 messages, between me and -- there was like a list of
8 names on an email, put a check for, and I didn't have
9 any messages from them.

10 Q. Okay. Who are those people?

11 A. I can't remember off the top of my head.

12 MR. RAHMAN: You know, I'm going to
13 instruct you not to -- hold on.

14 MS. BREKKE: I'm sorry, is this -- I'm
15 sorry, is this a communication with your -- I don't
16 want to know any communications you had with your
17 attorney. I should have asked initially if this
18 email was from your attorney. If it was from your
19 attorney, I really don't want to know anything that
20 you and your attorney spoke about. I'm not entitled
21 to that information. That's privileged.

22 Q. My question was about whether -- you
23 know, you don't have to tell me why you looked for
24 text messages, but there was a deposition notice sent
25 to you requesting documents. We can go over that and

1 I -- to make sure that you did adequately look for
2 these documents. Okay?

3 A. Yes.

4 MS. BREKKE: Okay. So why don't we do
5 that instead. So I'm going to -- and I'm going to
6 pull up your deposition notice. This is -- and I
7 told the court reporter, the numbers of the exhibits,
8 Imran, are not going to be one after the other.
9 We're going to be a little bouncing around. So this
10 is Exhibit 83.

11 (A document was marked as
12 Plaintiff's Exhibit 83.)

13 MS. BREKKE: I'm going to share my
14 screen.

15 Q. Can you see this, Ms. Dominguez?

16 A. Yes.

17 MS. BREKKE: So, for the record, this is a
18 six-page document. This is the amended -- the Second
19 Amended Notice of the Videotaped Deposition of
20 Ms. Wilson Dominguez and Request For Production of
21 Documents.

22 I'm going to scroll through this,
23 Ms. Dominguez, and let me know if this document looks
24 familiar to you at all. Let me know if you want me
25 to go slower.

1 THE WITNESS: I remember this document.

2 MS. BREKKE: Okay, great. Great.

3 So I'm going to scroll down to the fourth
4 page, Request For Production of Documents, Number 1.
5 So these are documents that we are -- absent any
6 objections by your attorney, we are entitled to.

7 Q. So let me ask you this --

8 MS. BREKKE: We -- my -- as, stated my
9 paralegal is entering the room. So this is Cameron
10 Hartquist. She'll be with us today.

11 Q. Okay. So, Ms. Dominguez, did you look
12 for all communications, that includes emails, text
13 messages, SMS, MMS, and any sort of other messages
14 between you and Mr. Lai since the beginning of your
15 employment with Defendant Sixt until August of 2022;
16 did you look for those documents?

17 A. Yes.

18 Q. And did you have any?

19 A. No.

20 Q. Do you have a practice of deleting text
21 messages, Ms. Dominguez?

22 A. Yes.

23 Q. When do you typically delete text
24 messages?

25 A. Within -- if it's been over a month or

1 two of no messages going back and forth, like, if
2 they are all the way at the bottom of my message
3 list, or if it says something like a date in the past
4 that is no longer, like -- a word like last week or
5 something like that, if it's an actual date that's
6 far in the past, then I delete it.

7 Q. Okay. So when was the last time you
8 communicated -- when I say Mr. Lai, you understand
9 it's Marcus Lai?

10 A. Yes.

11 Q. And when was the last time you
12 communicated with him?

13 A. Long time ago.

14 Q. Do you have an estimate?

15 A. No.

16 Q. I am entitled to your best estimate. So
17 what is your best estimate of the last time you spoke
18 to him?

19 MR. RAHMAN: Again, I want to caution you
20 not to guess. To the extent you can provide a best
21 -- your best estimate, feel free to do so. But,
22 again, don't guess.

23 THE WITNESS: Over a year ago.

24 BY MS. BREKKE: Q. Okay. Was it over
25 two years -- so that we're in 2025, so the last time

1 you spoke to him was in 2024?

2 MR. RAHMAN: Again, same instruction.

3 But go ahead. If you understand, you can
4 answer --

5 MS. BREKKE: I am entitled -- I am
6 entitled to your best estimate. So we can workshop
7 this.

8 Q. So do you believe you spoke to him in
9 2024?

10 A. I'm going to say the last time that I
11 know I talked to him for sure was 2023.

12 Q. Okay. And what was your last
13 communication with Mr. Lai in 2023?

14 A. What I can remember is him congratulating
15 me on my engagement.

16 Q. And where did he do that?

17 A. I can't -- I can't recall how it was.

18 Q. Like whether it was via text, or some
19 other messaging service; is that what you mean?

20 A. Yes.

21 Q. Okay. Okay. So the last -- when did you
22 get engaged?

23 A. 2023.

24 Q. Okay. What month in 2023?

25 A. March.

1 Q. Okay. And you can't specifically recall
2 if you spoke to him at any point after that; is that
3 correct?

4 A. Yes.

5 Q. And you got engaged in March of 2023.
6 You can't recall a time after that you spoke to him.

7 So do you know when you deleted your text
8 with him?

9 MR. RAHMAN: May call for speculation.
10 If you know.

11 THE WITNESS: No.

12 BY MS. BREKKE: Q. Okay. All right.
13 Had you deleted your text with him -- okay, strike
14 that.

15 You had said that if you don't have
16 regular communication with someone, you typically,
17 you know, delete the text thread; is that accurate?

18 A. Yes.

19 Q. Okay. Prior to March of 2023, had you
20 been in contact with Mr. Lai?

21 A. I believe I worked with him.

22 Q. Okay. So do you believe you deleted your
23 text with him after March of 2023?

24 MR. RAHMAN: May call for speculation.
25 If you know.

1 THE WITNESS: Well, I had to delete it
2 after, because that's --

3 BY MS. BREKKE: Q. Okay. I think my
4 question was trying to get at whether you had deleted
5 your thread with him and then he texted you again on
6 like a new thread that you didn't have with him.

7 Does that make sense?

8 A. Yes.

9 Q. But it sounds like you deleted your text
10 after March of 2023; is that correct?

11 A. I delete my texts, like, all the time.
12 It's not just like I wait a long time and then delete
13 the whole thread. I can delete it, like, within --
14 if we don't communicate for a month, and then we talk
15 again, it's been a month and I delete it. So it
16 happens all the time. It's not just at the end.

17 Q. Okay. Okay. Did you check your -- I --
18 I'm sorry.

19 What kind of phone do you have?

20 A. I have an iPhone.

21 Q. Okay. And did you check your iCloud
22 for -- do you have iCloud services set up on your
23 iPhone?

24 A. I do.

25 Q. Okay. And did you check your iCloud for

1 any messages with Mr. Lai?

2 A. In my settings, I believe I don't have,
3 like, the storage to hold messages. Like to hold
4 things in there. I clear it out, because I don't
5 have a lot of storage space.

6 But I also don't know how to check my
7 iCloud, because I just have my phone.

8 Q. Okay. Same question for -- and do you --
9 did you check for any e-mails you had with Mr. Lai?

10 A. My --

11 MR. RAHMAN: Lack of foundation. Calls
12 for speculation.

13 Go ahead.

14 MS. BREKKE: Okay, fine.

15 Q. Do you have any emails with Mr. Lai at
16 any point?

17 A. Do I have? I did when he worked with me.
18 But I don't -- I don't have anymore. Our inbox got
19 -- gets deleted every so -- if it's been awhile, and
20 it's been a few years since he's worked with us.
21 So...

22 Q. Uh-hmm. And when you say your inbox gets
23 deleted, what do you -- your Sixt inbox gets deleted?

24 A. Yes.

25 Q. And what is the -- how -- how do you know

1 this?

2 A. I know this because one time my inbox was
3 full, and I was able -- unable to use my -- my email,
4 so I had to delete all emails that were, like, more
5 than two years old. So now it's on a -- like, it
6 does it by itself. I don't know the exact amount of
7 time that it does it, but it has like on an auto
8 delete now so that I don't run into that issue.

9 Q. And is this just you? Or is this a Sixt
10 practice to your knowledge?

11 A. I know that it just popped up on my
12 email. I'm not sure on other people's emails. But I
13 have heard that their email was the same thing, that
14 it was the storage, that we're holding on too many
15 messages.

16 Q. Like -- but you were the one that went in
17 and said "auto delete." Correct?

18 A. Yes.

19 Q. You selected the Auto Delete function?

20 A. Yes.

21 Q. Okay. Similar with Request of Production
22 Number 2, did you check for all communications --
23 strike that.

24 Did you and Mr. Lai have any
25 communications related to Ms. Buksh after she

1 resigned?

2 THE REPORTER: Miss who?

3 MS. BREKKE: The Plaintiff in this case,
4 Buksh is how you pronounce her last name.

5 THE REPORTER: Thank you. Sorry.

6 MS. BREKKE: That's okay.

7 THE WITNESS: From what timeframe? What
8 other timeframe?

9 MS. BREKKE: Uh-hmm, August of 2022. So
10 right after -- I'll represent to you, that's right
11 after Mr. Lai's resignation to the president.

12 Q. Have you at any point spoken to Mr. Lai
13 about my client?

14 A. No.

15 Q. Okay. Similar question with -- let's
16 see. I'm jumping to four. Have you at any point
17 spoken to Ms. Hernandez about my client?

18 Michelle Hernandez?

19 A. No.

20 Q. About anything?

21 A. From -- are we doing the same timeframe?

22 Q. No. We are doing whole entire --

23 A. Entire?

24 Q. You know -- at any point?

25 A. Yes. When she worked with me.

1 Q. Okay. And did you look for all -- do you
2 still have text messages with Ms. Hernandez?

3 A. No.

4 Q. You've deleted those, as well?

5 A. Well, she -- she didn't really text
6 often. She was more of like an email or in person
7 talking. So I don't have those. She -- she moved
8 to, I believe, LA. So when she moved, we don't email
9 anymore.

10 Q. Okay. And do you text at all?

11 A. No.

12 Q. And when did she move to LA?

13 MR. RAHMAN: May call for speculation.
14 If you know.

15 THE WITNESS: I don't -- I don't remember
16 when she moved.

17 BY MS. BREKKE: Q. Did you -- or do you
18 have an idea of when you deleted any text messages
19 with Ms. Hernandez?

20 A. No.

21 Q. In the past year?

22 A. Again, I didn't really text her. So if
23 that -- if I don't really text her, that means it was
24 pretty fast that the messages got deleted. I would
25 say around maybe over two years ago?

1 Q. Okay. And emails, did you look for any
2 emails with Ms. Hernandez related to my client?

3 A. I did, but it was the same emails that
4 I've already provided.

5 Q. Great. Thank you.

6 And we have a couple more here.

7 Ms. Calderon? Did you work with Tiffany
8 Calderon?

9 A. Not closely.

10 Q. Okay. Do you have any communications
11 with her related to my client?

12 A. No.

13 Q. No text messages?

14 A. No.

15 Q. And when you say you didn't work with her
16 closely, what do you mean by that?

17 A. She was -- at the time, I believe she was
18 a downtown manager, I think. So she spoke to
19 Michelle. She didn't really need to deal with me
20 since I reported to Michelle.

21 Q. Uh-huh. And what timeframe are you
22 speaking of?

23 A. When we all worked together.

24 Q. So -- so that could help you out with
25 that one, yeah. It's like the 2019 to 2022 time

1 period?

2 A. Yes. Yes.

3 Q. Okay. At any point did you work closely
4 with Ms. Calderon?

5 A. Only when it was regarding our new cars
6 that we were getting. That's -- that's it.

7 Q. And so your interactions with her were
8 kind of limited to when you received new cars from
9 Sixt or from whoever -- I don't know where you get
10 your cars.

11 A. Yes. That's all she was sort of
12 interested in from me is when the new cars are coming
13 in.

14 Q. Okay. And that was throughout that 2019,
15 2021, 2022 time period; is that correct?

16 A. Yes.

17 MS. BREKKE: Okay. Okay. Okay. We can
18 stop with this exhibit.

19 And Madam Court Reporter, I'm going to try
20 to remember what exhibits that I referred to, so I'm
21 going to make a list, hopefully be more helpful by
22 the end of this. Okay?

23 THE REPORTER: Thank you.

24 MS. BREKKE: Sure.

25 Q. Ms. Dominguez, aside from your counsel,

1 did you speak to anyone else regarding your
2 deposition today?

3 A. My husband, to let him know I needed to
4 do this, but that's it.

5 Q. Okay. And that reminds me: Are you
6 alone in -- where are you? You don't have to tell me
7 your exact address. Are you in your home?

8 A. Yes. I'm in my daughter's room.

9 Q. Okay. And are you alone in your
10 daughter's room?

11 A. Yes.

12 Q. Is anyone else around?

13 A. No.

14 Q. Do you have any other screens up except
15 our Zoom screen?

16 A. No.

17 Q. Great. Okay. I'll just ask that if you
18 have your phone, if you could, please -- you know, I
19 don't necessarily -- you're a mom, I don't
20 necessarily need you to turn it off. But please, if
21 something comes up, if there's a call, you have to
22 take a break, let me know and we can break. Okay?

23 A. My phone is in the other room.

24 Q. Okay. And another thing is, I don't know
25 if you have -- it doesn't really seem like it -- we

1 had a deposition where someone liked to kind of
2 doodle. Any notes you take in the deposition I'm
3 entitled to see, and I'll ask you to hold up that
4 piece of paper. Okay?

5 So you spoke to your husband. And what
6 did you tell him -- oh, actually, never mind. He's
7 your husband. You also have a privilege there in
8 what you and your husband discuss. Okay?

9 So aside from your husband, did you speak
10 to anyone else?

11 A. No.

12 Q. Okay. Have you spoken anyone at Sixt
13 about it?

14 A. No.

15 Q. And, Ms. Dominguez, have you discussed
16 this lawsuit with anyone other than your counsel?

17 A. No.

18 Q. No one at Sixt?

19 A. No.

20 Q. Okay. Let's get into -- and, oh, have
21 you spoken to Mr. Lai at any point about this
22 lawsuit?

23 A. No.

24 Q. Okay. So let's get a little background
25 information on you, Ms. Dominguez.

1	Did you attend college?
2	A. No.
3	Q. Okay. Any -- did you attend high school?
4	A. Yes.
5	Q. Where did you go to high school?
6	A. In Hayward.
7	Q. Okay. Is there a Hayward High?
8	A. I went to a few different ones. So --
9	Q. Okay.
10	A. Yeah.
11	Q. And did you graduate from high school?
12	A. Yes.
13	Q. Okay. What year did you graduate high
14	school?
15	A. 2010.
16	Q. Okay. And then have you done any other
17	type of schooling aside from high school?
18	A. I did go to community college for, like,
19	two years, but I didn't finish.
20	Q. And what community college did you go to?
21	A. I went to Chabot in Hayward, and Skyline
22	College in South San Francisco.
23	Q. Chabot. How do you spell that?
24	A. C-H-A-B-O-T.
25	Q. And at Chabot, what was your -- I'm a

1 little unfamiliar with -- well, in Chabot, what --
2 were you working toward a specific degree? Or a
3 specific type -- were you taking specific type of
4 classes?

5 A. Originally, I was criminology and social
6 psychology.

7 Q. You switched to psychology at Skyline?
8 Or at -- still at Chabot?

9 A. At Skyline.

10 Q. So you were at Chabot for how long?

11 A. For one to two years. Yeah, one to two
12 years.

13 Q. Then you went to Skyline. How long were
14 you at Skyline?

15 A. That was online, so I think it was just
16 like one semester.

17 Q. And then after high school, did you
18 immediately enter the job market?

19 A. Yes.

20 Q. And what was your first job after high
21 school?

22 A. My first job was at UPS for -- for like
23 three months.

24 Q. What were you doing there?

25 A. I was package handler. I think that's

1 the title. For Oakland Airport.

2 Q. You were there for three months. Where
3 were you next?

4 A. I worked at a shoe store in San
5 Francisco. I was sales. The shoe store was called
6 Ecco, E-C-C-O.

7 MS. BREKKE: I actually had a client that
8 worked there. But this was many years ago. Or a
9 couple years ago.

10 Q. Okay. So you worked at Ecco for how
11 long?

12 A. A year?

13 Q. Uh-hmm. And then so that brings us into,
14 let's say, 2012, maybe?

15 A. Yes.

16 Q. So, in 2012, where was your next
17 position?

18 A. That's when I had my daughter, so I
19 stopped working for a bit. I didn't start working
20 again until about 2015. 2014, 2015.

21 Q. And where did you start working at that
22 point?

23 A. A warehouse for, like, shipping stuff for
24 Amazon, but that was just for a couple of months.
25 And that's when I joined Sixt.

1 Q. Okay. You've been at Sixt for, gosh,
2 almost --

3 A. 10 years.

4 Q. -- 11 years? 10 years? Yeah.

5 Okay. Okay. And so you got into the
6 rental car industry. I know it seems like you have a
7 couple, like, similar to -- some similar types of
8 thing, like warehouse, UPS, Amazon stuff.

9 So what got you interested in the rental
10 car industry?

11 A. They were hiring. So, um, when I -- when
12 I joined, it was like sales, which was kind of
13 connected to my previous job with the Ecco, and I
14 enjoyed doing sales. So I started off doing, like,
15 at the counter for Sixt.

16 Q. Which counter?

17 A. Like, where you rent the cars out to
18 customers.

19 Q. I'm sorry. I should have been clearer.
20 What location at Sixt?

21 A. In San Francisco airport.

22 Q. My understanding it was not like in the
23 airport, it was at an off-site kind of --

24 A. Yes.

25 Q. -- but still called the airport?

1 A. Yes.

2 Q. Okay. And was that the one next to the
3 Costco building? Or was it one before that?

4 A. Before that.

5 Q. And where was that one?

6 A. In the Westin Hotel.

7 Q. In downtown San Francisco?

8 A. No. It's right near the airport. I
9 think the city, it would be considered as Millbrea.

10 Q. And your job title when you first started
11 was what?

12 A. Rental sales agent.

13 Q. Okay. Do you know what month you started
14 at Sixt?

15 A. I started in June 2015 but then was let
16 go because of -- we switched from franchise to
17 corporate when corporate took over. And then I
18 started back with corporate in November 2015.

19 Q. Did you have the same position?

20 A. Yes.

21 Q. November 2015, you're a rental sales
22 agent?

23 A. Yes.

24 Q. Okay. And how long did you hold that
25 position?

1 A. So maybe six months to a year.

2 Q. Okay. And then what were you?

3 A. Then I was -- I became a fleet planner.

4 Q. When did you become a fleet planner?

5 A. Six months to a year after I was a rental
6 sales agent.

7 Q. About the same maybe summer of 2016?

8 A. I -- I can't recall the exact time.

9 Yeah.

10 Q. That's fine. Okay.

11 And were you -- I think I'm kind of
12 understanding the positions a little bit. Were you a
13 junior fleet planner, a senior fleet planner, or just
14 a fleet planner?

15 A. I was just a fleet planner.

16 Q. And when did your position change?

17 A. Then I was promoted to senior fleet
18 planner, which I was at for maybe a year.

19 Q. I'm sorry. How long were you just a
20 fleet planner?

21 A. Oh, about a year.

22 Q. Okay. And then you were promoted to
23 senior fleet manager -- strike that.

24 Senior fleet planner --

25 A. Yes.

1 Q. -- in 2017?

2 A. Yes.

3 Q. Okay. And then how long did you hold
4 that position?

5 A. About a year.

6 Q. And then what?

7 A. So then I was promoted to junior fleet
8 manager.

9 Q. Okay. Around 2018, let's say.
10 How long -- is that the position you
11 currently hold?

12 A. No. I was --

13 Q. How long were you in that position?

14 A. Say about another year.

15 Q. And --

16 A. Then I was a fleet manager.

17 Q. Oh, just to be clear, from senior fleet
18 planner to junior fleet manager, is that also a
19 promotion?

20 A. Yes.

21 Q. Okay. And then you were promoted to
22 fleet manager.

23 And what year was that?

24 A. 2019?

25 Q. Okay. And how long did you hold that

1 position?

2 A. Until about this year, when I was
3 promoted to senior fleet manager.

4 Q. So you were promoted this year to senior
5 fleet manager?

6 A. Yes.

7 Q. So you were in fleet manager position
8 from 2019 approximately to 2025; correct?

9 A. I'd say around 2020 to 2025.

10 Q. Okay. COVID sounds familiar in that
11 respect?

12 A. Yes.

13 Q. Okay. Are you a member of any
14 professional organizations?

15 A. What do you mean? What is a professional
16 org -- what is that?

17 Q. This wouldn't apply to you, but, you
18 know, if you're in HR, some people in HR are part of
19 like an HR organization. But it sounds like you
20 might not be.

21 But so is the answer "no," to your
22 knowledge?

23 A. No.

24 Q. Okay. Do you have any other -- do you
25 have any certifications related to anything?

1 A. No.

2 Q. Okay. So just a little background on
3 Sixt. You kind of got into something that I was
4 going to ask you. Do you know --

5 MS. BREKKE: Oh, my law clerk is now
6 coming. This is Madeline Ley, for the record.

7 Q. Okay. Do you know when Sixt operations
8 began in California?

9 A. No -- you mean for my location?

10 Q. I'm sorry, what was that?

11 A. For my location? Or do you mean the
12 whole California?

13 Q. Let's do your location.

14 A. Well, that's when I was -- because they
15 switched to corporate, so 2015 for San Francisco
16 airport.

17 Q. Okay. So when you were first hired in
18 June, they were just beginning -- or did you --
19 strike that.

20 Do you know how long the franchise was
21 going on for when you were hired?

22 MR. RAHMAN: May call for speculation.

23 THE WITNESS: Not for before I was hired.
24 But when I was hired to when they took over, it was
25 about three months.

1 BY MS. BREKKE: Q. Okay. And when you
2 were hired in 2015 for that franchise, just based on
3 your own observations, did it seem to be a well-oiled
4 machine? Or was it -- did it feel new?

5 MR. RAHMAN: Vague and ambiguous.

6 THE WITNESS: For corporate? When
7 corporate took over?

8 BY MS. BREKKE: The franchise.

9 A. Oh, for the franchise. It was not good.

10 Q. Okay. What made it not good?

11 A. It was just a mess. Nothing was, like,
12 organized. I remember we made the company look bad
13 just because of how messed up it was. Yeah.

14 Q. What do you mean by that?

15 A. Just, like, the -- our fleet wasn't
16 organized. Customers didn't have cars. It was just
17 -- it looked bad. We never had the cars they wanted.

18 Q. So when you say "we made the company,"
19 you said, "I remember we made the company look bad."
20 I got it.

21 Okay. And then corporate came over, like,
22 three months after you started; is that right?

23 A. Yeah. Yeah, about -- yes.

24 Q. About. Okay. Okay.

25 And, Ms. Dominguez, when did you first

1 meet Mr. Lai?

2 A. When he was hired as a fleet planner in
3 -- so that was around the time when I was a senior
4 fleet planner.

5 Q. And did you know he had just been hired?

6 A. Yes.

7 Q. Okay. And did you start working with him
8 at that point?

9 A. Yes.

10 Q. And were you like -- what -- like, were
11 you peers? Or did he report to you?

12 A. He didn't report to me. I was just like
13 a lead for that position, but he still reported to
14 the manager at that time. I trained him on the
15 position.

16 Q. And did you have to work with him
17 regularly?

18 MR. RAHMAN: Vague and ambiguous.

19 Go ahead.

20 THE WITNESS: Not too often. I think our
21 schedules were kind of, like, off. They weren't at
22 the same time. So I just remember working with him
23 as a -- like training him, and then after that, not
24 too much.

25 BY MS. BREKKE: Q. So you were on the

1 same team?

2 A. Yes.

3 Q. Who else was on the team?

4 A. I can't remember who else.

5 Q. Were there -- was there one other person?

6 A. It's hard, because we've been through a
7 few of them, so I don't know the timeframe of that,
8 during that time, how many was there. But the team
9 wasn't always small. So I could say, yeah, maybe one
10 other person, but I can't recall who that is.

11 Q. Okay. So I'll represent that -- my
12 understanding is that Mr. Lai started in 2017. And
13 so did at any point your involve -- your interactions
14 increase?

15 A. No.

16 MR. RAHMAN: Vague.

17 THE WITNESS: No.

18 BY MS. BREKKE: Q. You said -- at any
19 point until his resignation in 2022?

20 A. Oh. Can you explain what you mean by
21 "our interactions?"

22 Q. Yeah. Absolutely.

23 So your -- I asked you, you know, when you
24 first -- when he first was hired, how often did you
25 start working with him? And I'm not quoting you

1 verbatim. So just the general idea. You said, I
2 didn't work with him too often, I think our schedules
3 were off, were different, they weren't at the same
4 time. I remember training him, and then not too much
5 after that.

6 And so my question is, at any point, did
7 you start working together more?

8 A. Yes. When I was promoted to junior fleet
9 manager because he -- during the timeframe, he was
10 moved to become fleet assistant, so he was working in
11 the fleet department separate from, like, the branch.

12 So when I got promoted to junior fleet
13 manager, I moved to the same department that he was
14 in.

15 Q. And where were you before you were moved?

16 A. The branch.

17 Q. And that was just the Westin Hotel
18 location? Or something different.

19 A. No. The South Airport Boulevard location
20 next to the Costco.

21 Q. And then when you became junior fleet
22 manager, where did you primarily work out of?

23 A. About 10 minutes down from that location,
24 which is on Linden Ave.

25 Q. When you were training Mr. Lai, when you

1 first started working with him, how would you
2 communicate with him?

3 When I ask that -- yeah, when I ask that,
4 I mean, like were you texting, were you on email,
5 were you phone call -- giving to the phone calls?
6 Like, what was the method of communication?

7 Does that make more sense?

8 A. When he was a fleet planner? Or when we
9 were in the fleet department.

10 Q. When you first met him.

11 A. When I first met him.

12 Q. So in 2017, yeah.

13 A. I don't remember needing to communicate
14 with him else, like, at all. Just when we were on
15 the same shift, then we would, like, in person be
16 talking to each other.

17 Q. Okay. Okay. And then when you were
18 junior fleet manager, let's say, we said that was
19 maybe around 2018 or something? Maybe a year after
20 you met him, something like that?

21 A. Yeah. Yes.

22 Q. Okay. And then in 2018, when you were
23 interacting with him more, how were you
24 communicating? And same -- same idea behind my
25 question. Email, text, phone calls?

1 A. Text and phone calls. That's when I was
2 -- we had to work together every day, so, like, if
3 there was text and phone calls, if there was like a
4 call out, or, yeah, any type of messages like that.

5 Q. Okay. Okay. And do you recall who else
6 was on your team -- or let me ask a more foundational
7 question. Was it just you and Marcus on the team at
8 that time?

9 A. Yes.

10 Q. And who was the first -- was anyone else
11 hired?

12 A. I'm trying -- I'm not sure who came
13 first. I believe it was Sebrene, the fleet
14 assistant, and then Rudy came after Sebrene.

15 Q. And Rudy is Raldine Henry? Is that
16 correct?

17 THE REPORTER: I'm sorry, I didn't hear.

18 MS. BREKKE: And for the court reporter --
19 yeah, it's R-A-L-D-I-N-E. That's his first name.
20 And then last name Henry.

21 Q. So Sebrene was hired as fleet assistant,
22 and then Rudy.

23 How then long was it just you and Mr. Lai
24 working together, about?

25 A. I can't -- I can't remember. Like, maybe

1 six months? About six months?

2 Q. And you were working, scheduled the same
3 time?

4 A. Yes. The -- the hours of the office were
5 not that long since it was just me and him. So if
6 we're open, it's -- we're both there.

7 Q. Okay. So for approximately six months,
8 it was just the two of you?

9 A. Say -- because then I -- I believe when I
10 was promoted, there was -- it wasn't just me and him.
11 And I was promoted 2019. It's kind of hard to get
12 the time right.

13 Q. I understand. And so that was when you
14 were promoted to fleet manager; correct?

15 A. Yes. Because when I was promoted to
16 fleet manager, that's when we had a whole team. Like
17 I had another manager there with me, Martha. I
18 believe she was there when I was promoted. So...

19 Q. Okay. Just so I get this right, we --
20 you started as a rental sales agent -- just 'cause
21 I'm going to walk through the positions -- rental
22 sales agent around June 2015.

23 How long were you laid off for?

24 A. I don't know. Less than a month.

25 Q. Okay. So you have a quick turnaround,

1 rental sales agent back under corporate until about
2 2015. Excuse me, November 2015. Then you became a
3 fleet planner six months to a year after the rental
4 sales agent?

5 MR. RAHMAN: I need to go off the record
6 briefly.

7 MS. BREKKE: Okay, we can go off at 9:04.
8 (Recess taken.)

9 MS. BREKKE: We're back on the record at
10 9:30 a.m.

11 Q. So we were just walking through your
12 positions that you've had at Sixt, and then we're
13 walking through, kind of, your job duties and
14 responsibilities. Let's just do a little recap.

15 Rental sales agent, June 2015, a brief
16 month break or so.

17 THE REPORTER: Can you slow down a little
18 bit? I'm having trouble understanding.

19 MS. BREKKE: Rental sales agent, there was
20 about a brief month break for you after you were laid
21 off, the company was switched from a franchise to
22 corporate.

23 You continued as a rental sales agent six
24 months to a year. Then you became a fleet planner.
25 You were also about a year in that position, or

1 estimation was maybe 2016, something around that.

2 Then you were promoted to senior fleet
3 planner. You were in that position about a year.
4 Then you got a promotion to junior fleet manager.
5 Another year in that position. Promoted to fleet
6 manager. You held that position the longest, around
7 2019, 2020 to 2025.

8 And then you recently were promoted again
9 to senior fleet manager.

10 Did I get that right?

11 A. Yes.

12 Q. Great. And when were you promoted just
13 recently?

14 A. April? Or March. March.

15 Q. My understanding that you were on medical
16 leave for a period of time this year, too?

17 A. Yes.

18 Q. Okay. And when did you get back?

19 A. August. August 4th.

20 Q. Okay. All right. So let's dig into --
21 oh, something else I wanted to ask you.

22 Were you involved in hiring Mr. Lai?

23 A. No.

24 Q. Were you involved in promoting him from
25 that position of fleet assistant to fleet planner?

1 MR. RAHMAN: Hold on. Lacks foundation.
2 Misstates prior testimony.

3 Go ahead.

4 THE WITNESS: It was a -- it was from
5 fleet planner to fleet assistant.

6 MS. BREKKE: I'm sorry.

7 THE WITNESS: But, no, I wasn't a part of
8 that.

9 BY MS. BREKKE: And then when -- got it.

10 Q. Okay. So at any point in your
11 employment, did you, at -- with Sixt -- so the past
12 11 years, have you used your personal phone number to
13 communicate with employees?

14 A. Yes.

15 Q. And did you also have a work phone?

16 A. Yes.

17 Q. Have you had the same work number the
18 whole time?

19 A. For the work phone, yes.

20 Q. And is that the (650) 822-3393 number?

21 A. Yes.

22 Q. And the personal phone (650) 270-0326?

23 A. Yes.

24 Q. Okay. So now let's go through rental
25 sales agent. Let's start when you were at corporate,

1 so we can ignore the franchise period.

2 Who did you report to?

3 A. 2015? You said when I started?

4 Q. Yes.

5 A. I don't remember the names of the
6 managers at that time.

7 Q. Did you have one manager or two or three
8 or four? I don't know.

9 A. Maybe one that I would report to.

10 Q. And you don't remember that person?

11 A. No.

12 Q. Did you have any direct reports?

13 A. No.

14 Q. Okay. And where -- did you have -- that
15 was when you worked at the desk, and that was at The
16 Westin Hotel; correct?

17 A. Yes.

18 Q. And that's where you primarily worked?

19 A. Yes.

20 Q. All right. And what were your job duties
21 in that role?

22 A. I helped the customers get into their
23 cars as in, like, getting cars for customers, not
24 physically getting them into cars. Adding on
25 insurance if they wanted to purchase it. Upgrading.

1 Yeah.

2 Q. Okay. And was that -- that's different
3 from the fleet department. Correct?

4 A. Yes.

5 Q. What department is the rental sales agent
6 under?

7 A. I call it the branch. That's usually how
8 people refer to it as -- there's the branch or
9 operations and fleet.

10 Q. Got it. Branch operations, in your mind,
11 equates to the rental sales agent --

12 A. Yes.

13 Q. -- position. And then whatever else is
14 in that department; correct?

15 A. Yes.

16 Q. Okay. And had you worked with Michelle
17 Hernandez at that point?

18 A. No. She came after maybe around 20 --
19 this is when -- she came when I was a senior fleet
20 manager. So around that time. No. She came when I
21 was promoted -- when I was a junior fleet manager.
22 Sorry.

23 Q. That's okay.

24 And I think the estimation there is around
25 2018. Okay.

1 So fleet planner. About six months to a
2 year later, you became a fleet planner. And we're
3 going to run through these same questions here.

4 Who did you report to?

5 A. Andrew Burks.

6 Q. B-U-R-K-S?

7 A. B-U-R -- yes.

8 Q. And what was his title?

9 A. General manager.

10 Q. At SF0?

11 A. Yes.

12 Q. Okay. Did you have any direct reports in
13 that position?

14 A. No.

15 Q. Okay. And where did you primarily work
16 out of?

17 A. The South Airport Boulevard location.
18 The branch.

19 Q. So you were now in the fleet department?

20 A. No.

21 Q. Fleet planner is not in the fleet
22 department?

23 A. No.

24 Q. Okay. Tell me about the fleet planner
25 position.

1 A. Fleet planner is the person who plans the
2 cars out for customers, making sure we have the right
3 cars available.

4 Q. So you were in the same department then?

5 A. Yes.

6 Q. Okay. Any other way you can describe
7 that position; your job duties? Sorry.

8 A. Well, that's mostly -- you're just --
9 you're planning the fleet. Planning the fleet for
10 the customers.

11 Q. And what did that require? I'm still
12 learning the industry. So explain it in -- you know,
13 help me understand.

14 MR. RAHMAN: Just, you know, brief
15 objection. I think it's a bit overbroad and vague.

16 But go ahead.

17 THE WITNESS: What do you require?
18 Computer skills.

19 MS. BREKKE: No. No.

20 THE WITNESS: Sorry.

21 MS. BREKKE: That's not what I meant.

22 Madam Court Reporter, will you read back
23 my question?

24 (Record read.)

25 BY MS. BREKKE: So let me make the

1 question a little clearer. I didn't mean, like, what
2 skills are required. Just what did that position
3 require of you. What was the day like for you in
4 that position?

5 Does that make more sense?

6 A. Yeah. It's really straightforward. It's
7 just planning. So you just look at what we have, see
8 what customers are coming in, make sure they have the
9 car. If you're low on some cars, find out where we
10 can get the cars. So, yeah.

11 Q. Okay. Okay. That's helpful.

12 Then you became a senior fleet planner --
13 oh, I'm sorry. Were you working in any other
14 location other than this South Airport Boulevard
15 location?

16 A. No.

17 Q. And did you work with -- did you have any
18 other colleagues? Or is it just you?

19 A. I was the only fleet planner for a while.
20 Yeah. The people I worked with was, like, the other
21 positions, like, the people who check in cars or the
22 people at the counter who rent out the cars.

23 Q. And when you said "the people that rent
24 out the" -- so the rental sales agents and then the
25 customers?

1 A. Then the check-in agents. So the Sixt
2 staff that checks in the cars when the customers are
3 done renting the cars. And then the people at the
4 counter who rent the cars out to the customer.

5 Q. Got it. Okay. This is helpful. Thank
6 you.

7 Then you were promoted to senior fleet
8 planner. And who did you report to?

9 A. Same. Andrew.

10 Q. So did he promote you into that position?

11 A. Yes.

12 Q. Did you have any reports --

13 MR. RAHMAN: Sorry. Belatedly, may call
14 for speculation.

15 But go ahead.

16 BY MS. BREKKE: Q. Did you have any
17 direct reports in that position?

18 A. No.

19 Q. Were you still the only fleet planner in
20 San Francisco at that point?

21 A. It was for a good while. I was the first
22 fleet planner, so that's why there was no other ones.
23 And we were trying to get situated, because that was
24 a new location. So it was awhile before more started
25 coming in.

1 Q. And who was the first employee? Who was
2 the first other planner hired?

3 A. I'm starting to, like, remember. I think
4 -- I think it was Marcus. Marcus might have been one
5 of the first ones that came on, because I can't
6 remember any other ones.

7 Q. I get that. Like once you start talking,
8 things start coming back and memories are jogged. So
9 that's part of what we're trying here is like help
10 you try to recall things.

11 Okay. So first manag -- so first person
12 hired, but he was hired when you were a senior fleet
13 planner; correct?

14 A. Yes.

15 Q. And perhaps you filled that position of
16 fleet planner that you had just promoted out of?

17 A. The positions that --

18 MR. RAHMAN: May call for speculation.

19 THE REPORTER: I'm sorry?

20 THE WITNESS: The position stayed the
21 same.

22 MR. RAHMAN: Sorry. May call for
23 speculation.

24 Go ahead.

25 THE WITNESS: The positions required the

1 same thing, so he wouldn't be, like, filling my
2 position, but just like an add-on. Yeah.

3 BY MS. BREKKE: Q. Got it. But you were
4 technically above him as senior?

5 A. I don't consider above him. I just
6 consider it as I have more skills than him, which
7 gave me that senior role.

8 Q. And that's the position you trained him
9 for; correct?

10 A. I trained him for the fleet planner role,
11 yes.

12 Q. Right. Okay. Okay. And in that
13 position, what were your -- was it the same job
14 duties; is that a kind of what you were saying?

15 A. Yes.

16 Q. Any increased scope or responsibility as
17 senior fleet planner?

18 A. My manager was trying to get me to get
19 more responsibilities in, like, helping him out with,
20 like -- I don't know how to explain it the right way.
21 But, like, I did have more things to do, but it was
22 still similar to the planning. It just got kind of
23 had more information on the back end of things.

24 Q. Like, can you give me an example of that?

25 A. Like, he would teach me how to control

1 the rates for the customers. So, like, if we're low
2 on a certain car, he taught me how to raise the rates
3 so that we don't overbook.

4 Q. Got it. Okay. And in that role, where
5 were you working out of?

6 A. Same. South Airport Boulevard at the
7 branch.

8 Q. Okay. And you worked with Mr. Lai there,
9 as well. Correct?

10 A. Yes.

11 Q. Then you were promoted again to junior
12 fleet manager?

13 A. Yes.

14 Q. So my understanding is, and correct me if
15 I'm wrong -- actually, let me just ask you this:
16 When you were senior fleet planner, and Mr. Lai was
17 fleet planner -- I'm new to this profession so I'm
18 going to maybe sometimes butcher this, but I'm going
19 to try my best -- how -- did you already testify how
20 long you worked together at the South Airport
21 Boulevard location? What I mean by that, I mean,
22 like, months.

23 So did you work at that location together
24 for four months, a year together? Because I know you
25 were in that position for about a year.

1 A. Um, during that --

2 MR. RAHMAN: Asked and answered.

3 But go ahead.

4 MS. BREKKE: Yeah. This was at six
5 months. Sorry.

6 Q. You said about six months; is that right?

7 A. Yes, because he was moved out from that.

8 Q. Okay. Got it. We're good.

9 Okay. And then we have the senior fleet
10 manager position, so same questions there. Who did
11 you report to?

12 A. Andrew.

13 Q. And Mr. Lai did not report to you for
14 that period of time that you overlapped when you were
15 senior fleet manager; correct?

16 A. Senior fleet planner?

17 Q. Senior fleet planner. Yes.

18 A. No, he did not report to me.

19 Q. Okay. So then you were in the junior
20 fleet manager position, you report to Andrew Burks.

21 Did you have any direct reports at that
22 point?

23 A. That's when Marcus began.

24 Q. Did you have any other direct reports?

25 A. No.

1 Q. At any point that you held that position?

2 A. Yes, Sebrene. And then Raldine.

3 THE REPORTER: Raldine?

4 THE WITNESS: Raldine Henry. A-R-A --
5 R-A-L-D-I-N-E. Raldine.

6 BY MS. BREKKE: Q. And anyone else?

7 A. After Raldine, it was, I believe, Shy.
8 That's when Shy came in.

9 THE REPORTER: S-H-Y?

10 THE WITNESS: Yes.

11 MS. BREKKE: She's the plaintiff in this
12 case. We'll probably be referring to her as Shy or
13 Ms. Buksh.

14 THE REPORTER: Thank you.

15 MS. BREKKE: You're welcome.

16 Q. And that was when you moved over to
17 Linden; is that correct?

18 A. Yes.

19 MS. BREKKE: And for the court reporter,
20 that's L-I-N-D-E-N.

21 THE REPORTER: Thank you.

22 MS. BREKKE: You're welcome.

23 Q. And had you worked -- were you familiar
24 with Linden at all?

25 A. Yes. That's where all of our

1 out-of-service vehicles went when I was a fleet
2 planner. So that's where we'd send the cars.

3 Q. Okay. And as junior fleet -- the junior
4 manager position, then you were now in the fleet
5 department; correct?

6 A. Yes.

7 Q. First time in the fleet department?

8 A. Yes.

9 Q. Okay. And so tell me a little bit about
10 your role as the junior fleet manager.

11 A. The junior fleet manager is in charge of,
12 like, all the vehicles that are out at service, any
13 vehicles that are -- like new vehicles coming in and
14 vehicles that we are no longer going to use that we,
15 like, sell or send out. Sending the cars out to
16 wherever they need to go to get serviced. So like
17 whether that would be a dealer, a mechanic or a body
18 shop. So, yeah. That's about...

19 Q. And did you know any -- like, was there a
20 bit of a learning curve from going from junior fleet
21 planner to senior fleet manager?

22 A. Yes. Big.

23 Q. There was a learning curve?

24 A. Yes.

25 Q. And what sort of training did you get for

1 that position?

2 A. Not much. They kind of just threw me in
3 and said -- they said that all you needed was to know
4 how to organize, and if you can organize, then you'll
5 be fine.

6 So I started, and then I decided to get to
7 know all the vendors and -- yeah, I just catch on.

8 Q. Did you find that to be true; that the
9 only thing you only needed was organization?

10 A. Now that I look at it, yes. Yeah.

11 Q. And who told you that?

12 A. Can't remember who told me.

13 Q. And did you report to Andrew Burks the
14 entire time that you were the junior fleet manager?

15 A. Yes.

16 Q. And you moved over to the Linden
17 location. And did you exclusively work out of
18 Linden? Or did you also go to the branch?

19 A. I work out of Linden, but I would visit
20 the branch sometimes to see what cars they had there
21 and what needed to come back.

22 Q. So how much time, if you had to do a
23 percentage, how much time -- how much of your time
24 was spent at Linden versus the branch?

25 A. In the beginning, it was around 50/50.

1 And then, as I caught on more to everything, it was
2 -- I had started visiting the branch less. So
3 probably maybe around 25 percent at the branch.

4 Q. Why did it drop?

5 A. Because I'm -- I would say, like, in the
6 manager role, so I don't need to be doing those
7 visits. I have fleet assistants to help with that.
8 Also a better communication with the branch where I
9 don't need to physically visit, I can just check with
10 them over at Teams messaging and not waste time
11 going.

12 Q. And this was the first time you had
13 direct reports. Was that a learning curve for you,
14 too?

15 A. Yes.

16 Q. What made it a learning curve?

17 A. Because it was the first time. One
18 report. Fortunately, I only had one, so it wasn't
19 too hard. I was able to, like, get going smoothly.
20 It was also a little bit of a learning curve because
21 he had to train me on kind of what the whole
22 department did. He as in Marcus. Marcus had to
23 teach me kind of what was going on. So that kind of
24 threw everything a little weird.

25 Q. Did you rely on him?

1 MR. RAHMAN: Vague and ambiguous.

2 Go ahead.

3 THE WITNESS: Not -- not rely on him, but
4 I -- I had a lot of questions for -- there was other
5 managers that I could ask, as well, for help from,
6 like, other locations.

7 BY MS. BREKKE: Q. What other managers
8 did you ask for help?

9 A. We had a manager named Vinh, who was in
10 charge of San Jose and, like, kind of the Bay Area,
11 but he spent most of his day in San Jose. He was the
12 one who was supposed to train me, but since he was
13 mostly in San Jose, Marcus was there for, like,
14 quick, quick questions. But I could always reach out
15 to Vinh if I needed help.

16 Q. What is Vinh's last name; do you know?

17 A. Lu, L-I-U? Or L-H-U? I'm not sure of
18 the spelling. It's V-I-N-H. V-I-N-H space L-U.

19 BY MS. BREKKE: Q. All right. But the
20 only person at the Linden location that had knowledge
21 of your position was Mr. Lai; is that correct?

22 MR. RAHMAN: Just going to object.
23 Misstates prior testimony.

24 But go ahead.

25 THE WITNESS: Vinh had knowledge of my --

1 BY MS. BREKKE: Q. I'm sorry, that was
2 at the Linden location, physically?

3 A. Oh, was anybody else physically there?

4 Q. Uh-huh, yeah.

5 A. No. Vinh would stop by sometimes, but it
6 was mostly me and Marcus.

7 Q. So Marcus was there every day? That was
8 his main place --

9 A. Yes.

10 Q. -- that he worked; right?

11 How long do you think it took you to get
12 used to the position?

13 A. I'm still getting used -- I'm learning
14 new things. So I think the main thing, maybe about a
15 year.

16 Q. So over the course of that year, were
17 you, you know, going to Mr. Lai for questions, how to
18 do things, talking to Vinh?

19 A. There was other managers that I also
20 reached out to. 'Cause on the -- with the fleet
21 department we have, we had Andrew, which was on the
22 operations side, but the other way going up is a
23 whole nother set of managers. So there was Vinh, and
24 then above him was someone else, who was like our
25 regional, who was Jordan. He would also talk to me

1 daily and let me know what I need to do. Marcus was
2 more of the day-to-day questions.

3 Q. And what was Jordan's last name?

4 A. Jaussai, J-A-U-S-S-A-I? Maybe?

5 Sorry.

6 Q. That's okay. Okay. Okay.

7 Then we have the fleet manager position.

8 Oh, I have a question. Was Martha a
9 manager at Sixt when you were a junior fleet manager?

10 THE REPORTER: Did you say "was he
11 available"?

12 MS. BREKKE: A manager.

13 THE WITNESS: Yes.

14 BY MS. BREKKE: Q. So when did -- do you
15 know when Martha entered the picture?

16 A. No, I don't. I'm trying to, but I
17 can't --

18 Q. That's okay.

19 A. -- remember the time. I know she was
20 there -- she was there when I was promoted to fleet
21 manager. I believe. I think.

22 Q. Okay. Okay. And did you ever report to
23 Martha?

24 A. Yes.

25 Q. So at some point in your junior fleet

1 manager position, you went from reporting to Andrew
2 to reporting to Martha?

3 A. I went from reporting to Andrew to
4 Michelle. Michelle became the general manager when
5 Andrew left.

6 Q. Okay. And then when did you report to
7 Martha?

8 A. When she was hired, because she was hired
9 as my manager.

10 Q. Okay. So Andrew leaves, then you start
11 reporting to Michelle, who was higher range than
12 Martha?

13 A. Yes. Because Michelle is general
14 manager, so she is over fleet operations and the
15 fleet. She's both. And then when Martha comes in,
16 it sort of goes me, Martha, Michelle.

17 Q. Got it.

18 A. Yeah.

19 Q. Okay. So then you got the fleet manager
20 position.

21 I know Martha left at a certain point.
22 Did you take her position when she left? Or had you
23 already -- were you already promoted as fleet manager
24 prior to her leaving, to your recollection?

25 A. She was hired as a senior, I believe.

1 Q. Okay.

2 A. Yeah.

3 Q. So the position you have now?

4 A. Yes.

5 Q. Okay. So then in your fleet manager
6 position, same questions, who did you report to?

7 A. I reported to Martha and Michelle.

8 Q. Both of them?

9 A. Yes.

10 Q. Okay. And where did you primarily work
11 out of?

12 A. Same. Linden.

13 Q. And then -- and then going to the branch
14 when needed?

15 A. I hardly went to the branch then.

16 Q. Okay. What percentage would you say you
17 were at Linden versus the branch?

18 A. 90 percent.

19 Q. The vast majority?

20 A. Yeah.

21 Q. Okay. And direct reports in that
22 position?

23 A. Well, me, Marcus and Shy. During --

24 THE REPORTER: And who?

25 THE WITNESS: Shy.

1 BY MS. BREKKE: Q. Okay. That was until
2 2022, and then I imagine -- correct?

3 A. Uh-huh.

4 THE REPORTER: Make sure you answer "yes"
5 or "no."

6 THE WITNESS: Yes. Sorry.

7 BY MS. BREKKE: Q. And then after
8 Mr. Lai and Ms. Buksh were no longer with the company
9 in 2022, did anyone replace them?

10 A. Yes.

11 Q. And who replaced them?

12 A. The order, it might be off because I
13 don't --

14 Q. Sure.

15 A. -- remember the order. But we had maybe
16 -- I can't remember the name. Sean, Sky, deMarcus.

17 Q. DeMarcus?

18 A. Uh-huh. DeMarcus.

19 Right now, we have three new ones; so
20 Jason, Bree, Jessica. I think I might be missing
21 one.

22 Q. So until 2022, you had three direct
23 reports; correct?

24 A. Yes.

25 Q. Okay --

1 A. They were not only to me. It's just me
2 and Martha. So like we both are -- yeah.

3 Q. It was you and Martha, but Martha was
4 above you --

5 A. Yes.

6 Q. But they were still your direct reports,
7 and they also were her direct report? Is that what
8 --

9 A. Yes. Like I was focusing on body damages
10 at the time, so we separated the duties. So I
11 handled more of the body shop relations and writing
12 estimates on body shop cars, and Martha handled more
13 of the day to day for the fleet, which was managing
14 the assistants and deciding where they are going to
15 go for the day.

16 Q. Okay. And then when she left, you
17 handled both ends of that?

18 A. Yes.

19 Q. So the body damages and then the day to
20 day?

21 A. Yes.

22 Q. Got it. Okay. Let's see.

23 Any other questions for that position?

24 Oh, yeah. So for that position, you were
25 focusing on body damage -- okay, got it.

1 Any other things to add in terms of your
2 job duties in that position of fleet manager?

3 A. No.

4 Q. And do you still focus on both body
5 damages and then also the day to day -- strike that.
6 Until you became senior fleet manager, did you kind
7 of have that dual role that whole time after Martha
8 left?

9 A. No, because we've had senior managers
10 come in after Martha.

11 Q. Okay. After Martha, who was the senior
12 manager that came in?

13 A. I can't -- Budiyo came by to help a
14 lot. I don't know his position, but he was there. I
15 think he might have been in charge of San Jose and
16 San Francisco, but he worked mainly out of San
17 Francisco.

18 THE REPORTER: Can you spell his name?

19 THE WITNESS: And then -- Budiyo?

20 B-U-D-I-Y-O-N-O.

21 THE REPORTER: Thank you.

22 BY MS. BREKKE: Q. And did he come in to
23 help after Mr. Lai and Ms. Buksh left?

24 A. No. He was there during. He was -- he
25 was there when Martha was there. It's just that he

1 was San Jose and San Francisco. So when Martha left,
2 I believe that he started coming over more to help
3 out.

4 Q. Uh-huh. And how often was he there?

5 A. Maybe at least two days of the week.

6 Q. At Linden?

7 A. Yes.

8 Q. Did he have his own office?

9 A. He had his own space, yes. It's not like
10 a complete office, but he had his own space.

11 Q. Okay. When you were junior fleet manager
12 and started working out of Linden, did you have your
13 own office?

14 A. No.

15 Q. When you became fleet manager, did you
16 have your own office?

17 A. Yes.

18 Q. Okay --

19 A. No. No. It was after Martha left that I
20 took her office.

21 Q. And before that, where did you work
22 primarily?

23 A. There was a -- there was a room inside
24 that room was a small office. I was in the outer
25 part of that room with the fleet assistant.

1 Q. You were all together?

2 A. Our own desk in that space, yes.

3 Q. Okay. Okay. And then last position,
4 senior fleet manager. How have your duties changed
5 since your prior position?

6 A. As a senior?

7 Q. Uh-huh, yes.

8 A. Well, I was promoted, and then that's
9 when I went on leave, so I haven't really gotten to
10 do much of it. But basically it's dealing more of
11 like the cost of things. Trying to lower costs.
12 Finding vendors, and improving our -- the systems
13 that we have in place.

14 Q. Okay. And you've mentioned these direct
15 reports that you have; is that correct?

16 A. Right now?

17 Q. Yeah. Who are your direct reports right
18 now?

19 A. Jessica, Bree, Jason, Sky, Rudy, Raldine,
20 and Matthew.

21 Q. And where do you primarily work out of
22 now?

23 A. At Shaw Road.

24 Q. And it's my understanding that Linden
25 basically -- is -- that Shaw is the new Linden?

1 A. Yes.

2 Q. Okay. And do you go to the branch ever?

3 A. Yes.

4 Q. How often?

5 A. Mondays. So one day a week.

6 Q. Okay. And the entire time you were fleet
7 manager, you were 90 percent at Linden; is that
8 correct?

9 A. I was.

10 Q. Okay. Okay. So in any of the positions
11 that we have gone through, in addition to the duties
12 that you've already -- you know, you started having a
13 direct report -- you know, at some point you started
14 having direct reports, and as part of your job
15 duties, were you at all involved in investigating
16 employee complaints?

17 A. Out of the whole time I was a -- from
18 junior fleet manager to now?

19 Q. At any point.

20 A. Yep. At any point, yes.

21 Q. Okay. And when did that start?

22 A. As soon as I became a manager. So the
23 manager role includes that.

24 Q. And did you have to -- starting in 2018,
25 did you have to investigate employee complaints?